

IN THE PROCURMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCURMENT REGULATORY AUTHORITY

Quorum:

1. Habib Ur Rehman Jamot..... Chairman
2. Mubashir Ali Khan (FCIPS).....Member
3. Engr. Ifukhar Ahmed MirMember Technical
4. Engr. Junaid Shah.....Member
5. Advocate Abdul Wahab Bulledi.....Private Member

PRC Appeal No. 14/2025

M/S H.K Niazi Government Contractor

....APPELLANT

VERSUS

1. The Secretary, Local Government of Balochistan.
2. Senior Assistant Director, Local Government & Rural Development Department.
3. Chairman CRC Committee Local Government Department.

....RESPONDENTS

APPEAL UNDER RULE 56-A OF BALUCHISTAN PUBLIC PROCUREMENT RULES 2014
AGAINST TSE No: 252608806073

For the Appellant:

Mr. Imran Ullah

For the Respondents:

Ms. Zahida Munir, Senior Assistant Director, LG&RD Department.

Mr. Muhammad Nasir, Superintendent/Representative of LG&RD Department

Date of Hearing:- 06-10-2025

Decided on:- 08-10-2025

1. Brief facts of the Appeal are that the Appellant has invoked the jurisdiction of this Committee under Rule 56-A of Balochistan Public Procurement Rules 2014 challenging therein the impugned act of the official Respondents alleging therein that he had submitted the Call Deposit Rs.900,000/- on 22/08/2025 and has also submitted the tender fee of Rs.2,000/- before the bid submission deadline and subsequently attempted to submit his bid envelope to the procuring agency i.e. Respondent No.2 before the deadline. However, neither his bid was received nor his attendance was marked in the bidder's attendance sheet uploaded on the B-PPRA website by the Official Respondents despite his presence at the due date, time and venue.
2. That the Appellant being aggrieved from the impugned act of the Official Respondents had filed a Complaint to the Chairman, Complaint Redressal Committee on 26/08/2025 but the same remain un-responded.

3. That the notices were issued to the Respondents and personal attendance of Respondent No.2 was sought, who filed her reply and denied the allegations leveled by the Appellant and further added that the Appellant could not present his bid during the time prescribed for bid opening due to which the Official Respondent No.2 has not entertained the bidding documents envelop and returned the same to the Appellant. However, on query raised by this Committee whether any written remarks on envelope were given or any forwarding letter etc was communicated to the Appellant regarding submission of bid after the prescribed time of bidding, the Official Respondent No.2 answer was in negative.
4. That we have already heard the Appellant in person and have heard the Respondent 2. The reply filed by the Official Respondents reflects that the CRC has allegedly decided the Complaint so filed by the Appellant on 18.09.2025 which was neither communicated to the Appellant nor to the Balochistan Public Procurement Regulatory Authority, and such decision dated 18.09.2025 is against the BPP Rule 56 which is reproduced as under;

.... "56 Mechanism for Redressal of Grlevances-

(4) The Complaint Redressal Committee shall announce its decision within fifteen (15) days and intimate the same to the bidder and the Authority within three (03) working days by Procuring Agency.

5. The Complaint Redressal Committee (CRC), as mandated under Rule 56(4), was required to announce its decision within fifteen days and communicate it to both the Bidder, and the BPPRA within three working days thereafter. In the present case, however, the CRC failed to issue its decision within the stipulated timeframe and did not communicate any outcome to the Appellant or BPPRA. The subsequent submission of the CRC meeting minutes before this Committee appears to be an attempt to conceal the failure to provide timely grievance redressal as required under the procurement law. Consequently, the decision of the Complaint Redressal Committee, rendered after the expiration of the statutory period, lacks legal validity and sanctity.
6. The Committee notes a profound and unexplained contradiction in the record submitted by Respondent 2. While they have provided an attendance sheet purportedly signed by all participating contractors and the Procurement Committee, they have simultaneously submitted a copy of the attendance sheet uploaded to the B-PPRA website, which lists the very same contractors and the Procurement Committee as absent. When confronted with this discrepancy, the representative of the Procuring Agency, the Senior Assistant Director of the LG&RD Department, failed to provide a satisfactory explanation. Instead, she presented three inconsistent justifications for the same issue, further undermining the credibility of the submitted record. This fundamental inconsistency directly calls into question the authenticity of the procurement proceedings and the reliability of the documents presented by the Procuring Agency.

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7. The Committee has taken cognizance of the video evidence submitted by the Appellant. While not the sole basis for our determination, the evidence substantiates the Appellant's presence at the bid opening within the stipulated timeframe and corroborates his claim regarding the attendance of other contractors. The Respondent's admission that the Appellant was filming the scene and that an official expressed displeasure, further validates the existence of this evidence. Collectively, this visual documentation and the Respondent's acknowledgment directly contests the official record and raises significant doubts regarding the accuracy and veracity of the attendance sheet presented by the Procuring Agency. And the evidence strongly supports the Appellant's contention that beside him, the bid opening was attended by a number of participants, contrary to the Respondent's official record uploaded at the website of the BPPRA.
8. During proceedings, the Respondent No.2 stated that it is a customary practice for the Procuring Agency to prepare a caultron (daig) of rice for the contractors attending bid openings, characterizing it as a gesture of courtesy and hospitality. The Committee finds this practice highly irregular and inappropriate within a formal Public Procurement process. The Committee expressly inquired into the source of funds utilized for this un-obligatory expenditure. The Respondent failed to provide a satisfactory or legitimate account for the financing of this practice. This lack of transparency raises serious concerns about financial propriety and the potential for creating informal, off-the-record relationships that may undermine the principles of fairness and impartiality in the procurement process.
9. This Committee is confronted with a pattern of grave procedural illegalities and deliberate negligences by the Procuring Agency that has fundamentally compromised the integrity of the procurement process for Tender No. TSE-252608806073, which are not mere technicalities but constitute a systemic effort to manipulate the bidding process, and shows intent of Procuring Agency to confer undue advantage to some bidders.
10. First, the timing and circumstances of the Grievance Redressal Committee's decision indicate that it was issued primarily to subvert the proceedings currently before this Review Committee, rather than to provide a genuine and timely redressal mechanism.
11. Second, the conduct of the Official Respondents demonstrates a severe and deliberate negligence throughout the bidding process. This pattern of disregard for established procedure creates a compelling inference that the process was manipulated to confer an undue advantage upon favored bidders, bypassing the mandatory due process of law.
12. Third, the Procuring Agency's own submission contains contradictory attendance sheets directly challenged by the Appellant's video evidence, which the Respondent acknowledges exists. This irreconcilable conflict confirms that the foundational documents of the procurement process have been compromised, rendering the entire proceeding untrustworthy.
13. This conclusion is starkly evidenced by the irreconcilable discrepancy in the official record concerning bidder attendance sheet showing contractors as present, signed by the Committee Chairman, while the document uploaded to the BPPRA website for the same

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event listed those contractors as absent which is not a minor administrative error but a deliberate act that falsifies the official record of the bid opening.

14. Given that a significant public fund of Rs. 44.18 million is at stake, this Committee cannot remain a passive spectator to ignore the deliberate negligence on the part of the Procuring Agency. Upholding the principles of transparency, accountability, and fair competition is paramount.
15. Keeping in view the Appeal in hand is allowed and TSE-252608806073 is declared as mis-procurement under Rule 57 on account of grave negligence and non-observance of BPP Rules, 2014.
16. Copy of this decision be sent to Secretary Local Government of Balochistan as well as all concerned.



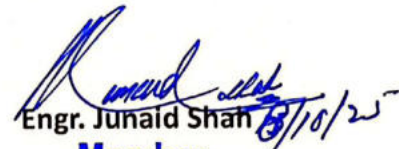
Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)



Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA



Engr. Junaaid Shah
Member
Procurement Review Committee
BPPRA



Engr. Ifikhar Ahmed Mir
Member
Procurement Review Committee
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Abdul Wahab Buledi, Advocate
Member
Procurement Review Committee
BPPRA